



CHAPTER 70.

An Act to assist farmers to increase the fertility of their land; to provide for securing farmers against any substantial fall in the price of oats and barley, and to raise the limit of the quantity of wheat in respect of which deficiency payments under the Wheat Act, 1932, may be made at the full rate; to make further grants for land drainage; to promote the eradication of diseases of animals and poultry, and with that object to establish a national service of veterinary inspectors; and for purposes connected with the matters aforesaid. A.D. 1937.
[30th July 1937.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

PART I.

LIME AND BASIC SLAG.

1.—(1) The Ministers may, in accordance with a scheme (hereinafter referred to as the "Land Fertility Scheme") made by them with the approval of the Treasury, make contributions out of moneys provided by Parliament towards the cost incurred by any occupier of agricultural land in the United Kingdom in acquiring and transporting any quantity, not being less than two

Exchequer contributions towards purchases of lime and basic slag.

A.D. 1937. tons, of lime or basic slag for the purpose of adding it to that land in order to improve the fertility of the soil :

PART I.

—cont.

Provided that no such contribution shall exceed an amount calculated in accordance with the provisions of the scheme to represent as nearly as may be—

(a) in the case of lime, one half;

(b) in the case of basic slag, one quarter;

of the cost so incurred by the occupier.

(2) The Land Fertility Scheme may contain such provisions as the Ministers and the Treasury consider expedient for the purpose of promoting economy and efficiency in the acquisition, transport and use of the lime and basic slag in respect of which contributions are payable under this section and in the administration of the scheme.

(3) Contributions shall not be made under this section towards any cost incurred by an occupier of agricultural land after the prescribed date, which subject as hereinafter provided shall be the thirty-first day of July, nineteen hundred and forty :

Provided that the prescribed date may be postponed for not more than two successive periods of one year each by orders made by the Ministers with the consent of the Treasury and confirmed by a resolution of each House of Parliament.

Land
Fertility
Committee.

2.—(1) The Ministers shall appoint a Committee to be called the Land Fertility Committee consisting of a chairman and not more than four other members, and it shall be the duty of the Committee to exercise such functions in the administration of the Land Fertility Scheme as may be assigned to them by the scheme and to advise the Ministers upon any matters relating to the scheme.

(2) The Ministers may appoint a secretary to the Committee and the Committee may appoint such other officers and such servants and may employ such agents as the Ministers may with the approval of the Treasury determine; and the Ministers may, out of moneys provided by Parliament, pay such expenses of the Committee (including remuneration and allowances, to the members, officers, servants and agents of the Committee) as the Ministers may with the approval of the Treasury determine.

3.—(1) Without prejudice to the generality of the foregoing provisions of this Part of this Act as to the contents of the Land Fertility Scheme, the scheme may—

A.D. 1937.

PART I.

—cont.

- (a) prohibit the payment of contributions in respect of lime or basic slag purchased from any person other than a supplier of lime or basic slag approved by such authority and in accordance with such procedure as may be provided by the scheme;
- (b) prescribe the conditions subject to which persons may become or cease to be approved suppliers, including conditions as to the prices to be charged for the lime and basic slag purchased from them, and conditions as to the furnishing of information and the production of accounts, books and other documents;
- (c) make provision permitting any quantity of lime which an occupier of agricultural land has himself produced or rendered suitable for the purpose of adding it to his land in order to improve the fertility of the soil to be deemed to have been acquired by him, and for enabling the cost which is to be taken for the purposes of the scheme to have been incurred by him in acquiring it to be computed by reference to standard scales or otherwise in such manner as may be provided by the scheme;
- (d) make provision for enabling the cost which is to be taken for the purposes of the scheme to have been incurred by any occupier of agricultural land in transporting any quantity of lime or basic slag to be computed by reference to standard scales or otherwise in such manner as may be provided by the scheme;
- (e) make provision for enabling associations of farmers, allotment holders, or smallholders, or other similar associations, which purchase lime or basic slag in bulk for redistribution to their members, to be treated in such cases as may be provided by the scheme as if they were the occupiers of agricultural land;
- (f) prohibit the payment of contributions in respect of lime or basic slag produced outside the United Kingdom;

Supplementary provisions as to contents of the Land Fertility Scheme.

A.D. 1937.

—
PART I.
—cont.

- (g) define the kinds or descriptions of lime and basic slag in respect of which contributions may be paid;
- (h) provide for the making of arrangements for promoting research, investigation and instruction as to the use of lime and of basic slag as a means of promoting the fertility of the soil, and for the financing of such arrangements by means of sums to be collected from approved suppliers who are producers of lime or basic slag and from persons receiving contributions under this Part of this Act, respectively, not exceeding twopence for every ton of lime or basic slag in respect of which such a contribution is paid;
- (i) make different provisions in relation to different kinds, descriptions and quantities of lime and of basic slag.

(2) The Land Fertility Scheme and any subsequent scheme amending that scheme shall be laid before Parliament as soon as may be after it has been approved by the Treasury, and if either House of Parliament, within the next twenty-eight days on which that House has sat after the scheme is laid before it, resolves that the scheme be annulled, the scheme shall thereupon cease to have effect, but without prejudice to anything previously done thereunder, or to the making of any new scheme.

Power of
recovery in
the event of
excessive
price.

4. If the price charged to, and received from, an occupier of agricultural land by an approved supplier for lime or basic slag in respect of which a contribution is payable under the Land Fertility Scheme exceeds the price permitted by the conditions subject to which the supplier was approved in accordance with the provisions of the scheme, the amount of the excess shall be recoverable by the occupier from the supplier summarily as a civil debt.

Exclusion
of contribu-
tions in
assessing
tenant
right.
13 & 14
Geo. 5. c. 9.

5. In assessing the amount of any compensation payable to a tenant of agricultural land, whether under the Agricultural Holdings Act, 1923, or the Agricultural Holdings (Scotland) Acts, 1923 and 1931, or under custom or agreement, by reason of the improvement of the land by the addition thereto of lime or basic slag in respect of which a contribution has been made under this Part of this Act, the contribution shall be taken into

account as if it had been a benefit allowed to the tenant in consideration of his executing the improvement, and the compensation shall be reduced accordingly.

A.D. 1937.

—
PART I.
—cont.

PART II.

OATS, BARLEY AND WHEAT.

6.—(1) If, in the case of the year nineteen hundred and thirty-seven or any of the following four years, the United Kingdom price per hundredweight of home-grown oats harvested in that year falls short of eight shillings by fivepence or more, then, subject to the following provisions of this Part of this Act, the appropriate Minister may, out of moneys provided by Parliament, make to the person who, at the beginning of the fourth day of June in that year, was the occupier of any farm in the United Kingdom comprising land then under oats or land then under barley, a payment (hereafter in this Act referred to as a "subsidy payment") at the rate of an amount equal to six times the difference between the said price and eight shillings, or at the rate of one pound, (whichever rate is the less) for each acre of that land which at the beginning of the said day was under oats or under barley, as the case may be :

Subsidy
payments in
respect of
land under
oats or
barley.

Provided that the appropriate Minister shall not be authorised to make any subsidy payment in relation to any farm by reason of any land which at any particular time was comprised in that farm having been then under oats or under barley, if the total area of the land then comprised in that farm which was then under oats or under barley, as the case may be, was less than one acre, and where the said total area was not an exact number of acres, the odd fraction of an acre shall be disregarded.

(2) If the qualifying acreage of land under oats or under barley in the year nineteen hundred and thirty-eight or any of the following three years exceeds the standard acreage, the rate at which any subsidy payment may be made in respect of any land by reason of its having been under oats or under barley, as the case may be, in that year shall be a rate bearing to the appropriate rate determined by the preceding subsection the same proportion as the standard acreage bears to the qualifying acreage of land under oats or under barley, as the case

A.D. 1937.

PART II.

—cont.

may be, in that year; and if the rate determined by the preceding provisions of this subsection is not an exact multiple of a penny, the odd fraction of a penny shall be disregarded.

In this subsection the expression “the standard acreage”, in relation to oats or in relation to barley, means such acreage as the Ministers may by order declare to be the number of acres arrived at by multiplying by eleven-tenths the qualifying acreage of land under oats or under barley, as the case may be, in the year nineteen hundred and thirty-seven.

(3) Any reference in this Act to the United Kingdom price per hundredweight of home-grown oats harvested in any year shall be construed as a reference to such price as the Ministers may by order declare to be the United Kingdom price per hundredweight of home-grown oats for the period of seven months beginning with the first day of September in that year, as ascertained in accordance with the provisions of the First Schedule to this Act.

(4) Any reference in this Act to the qualifying acreage of land under oats or under barley in any year shall be construed as a reference to the total number of acres of land under oats or under barley, as the case may be, in respect of which it has become lawful to make subsidy payments by reference to the United Kingdom price per hundredweight of home-grown oats harvested in that year, or in respect of which it would become or would have become lawful so to make such payments if the said price proved or had proved to fall short of eight shillings by fivepence or more, and in relation to England, Scotland or Northern Ireland shall be construed as a reference to the said total number of acres of land in England, in Scotland or in Northern Ireland, as the case may be.

Subsidy
payments
and wheat
deficiency
payments
to be
alternative.

7.—(1) Where, in the case of any farm which at the beginning of the fourth day of June in any year comprised any land under oats or land under barley, there was at any time during the first eight months of that year comprised in that farm any land under wheat, the appropriate Minister shall not be authorised to make any subsidy payments in respect of any of the said land by reason of its having been under oats or under barley, as the case may be, in that year, unless the person who at the

A.D. 1937.

—
PART II.
—cont.

beginning of the said day was the occupier of that farm has, within such period in that year as may be prescribed by regulations made by the Ministers, elected, by notice given to the appropriate Minister in such manner as may be so prescribed, to avail himself of this Part of this Act in respect of that farm for that year.

(2) If, in respect of any farm, any person elects in accordance with this section to avail himself of this Part of this Act for any year, no deficiency payments shall be payable under the Wheat Act, 1932, in respect of any wheat harvested in that year and grown on land which at any time during the first eight months of that year was comprised in that farm.

22 & 23
Geo. 5. c. 24.

The power conferred on the Wheat Commission by section five of the said Act to make byelaws for giving effect to the provisions of that Act, shall include a power to make byelaws for giving effect to the provisions of this subsection.

(3) With respect to the year nineteen hundred and thirty-seven and each of the following four years, the appropriate Minister shall, as soon as may be after the end of the period in that year prescribed by regulations under this section, cause to be prepared, and to be sent to the Wheat Commission, a list specifying, in relation to England, Scotland or Northern Ireland, as the case may be, the farms in respect of which persons have elected in accordance with this section to avail themselves of this Part of this Act for that year, and the persons respectively who have so elected.

8.—(1) Where at the beginning of the fourth day of June in any year a crop of oats or barley is growing intermixed with any other crop, the land on which the mixed crop is growing may, in such cases as may be determined in accordance with regulations made by the Ministers, be treated for the purposes of this Part of this Act as land which was then under oats or under barley, as the case may be, but such regulations may provide for the acreage of land on which mixed crops are growing being treated as reduced for the said purposes.

Provisions
as to mixed
crops and
negligent
cultivation.

(2) If it appears to the appropriate Minister that the crop of oats or barley obtained from any land in any year is unduly small or has been prejudicially affected either

A.D. 1937. because of the unsuitability of that land for growing oats or barley, as the case may be, or by negligence in connection with the preparation of the land for the crop or with the sowing, tending or harvesting of the crop, he may by order direct—

PART II.
—cont.

- (a) that, for the purposes of this Part of this Act, the acreage of the said land under oats or under barley, as the case may be, at the beginning of the fourth day of June in that year shall be disregarded; or
- (b) that, for the purposes aforesaid, the said acreage of that land shall be deemed to be reduced to such extent as may be specified in the order.

Provisions
as to
applications
for subsidy
payments,
extent of
farms, &c.

9.—(1) Subject to the provisions of the next following subsection, the appropriate Minister shall not be authorised to make any subsidy payment in respect of any land by reason of its having been under oats or under barley in any year, unless an application for the payment has, in such manner, and within such period in that year, as the Ministers may by regulations prescribe, been made to the appropriate Minister by the person who, at the beginning of the fourth day of June in that year, was the occupier of the farm then comprising that land.

(2) In relation to any land the appropriate Minister may, in any case which appears to him to be exceptional, and if he considers it desirable in the circumstances of the case so to do, extend any period within which, under the preceding provisions of this Part of this Act, any application or election in respect of that land must be made.

(3) For the purposes of this Part of this Act, land farmed as a single unit shall be taken to be a separate farm; and if, in connection with the administration of this Part of this Act, any question arises as to whether or not any land was comprised in any particular farm at any particular time, that question shall be decided by the appropriate Minister, and his decision shall be final and conclusive for all the purposes of this Part of this Act.

Perform-
ance of
administra-
tive func-
tions by

10.—(1) The Wheat Commission may perform on behalf of the appropriate Minister any such functions in connection with the administration of this Part of this Act as he may, with the approval of the Treasury, entrust

to the Commission; but the Commission shall not be authorised by virtue of this subsection to pay any subsidy payment, or to exercise any of the powers of the Ministers or the appropriate Minister to make any order, regulations or rules.

A.D. 1937.

PART II.

—cont.

Wheat Com-
mission.

(2) The appropriate Minister may, in accordance with directions of the Treasury, pay from time to time to the Wheat Commission, out of moneys provided by Parliament, such sums as he may, with the approval of the Treasury, determine to be required for defraying the expenses properly incurred by the Commission in the performance of functions entrusted to them under this section.

(3) The reference in subsection (6) of section ten of the Wheat Act, 1932, to the administrative expenses of the Wheat Commission shall be construed as a reference to those expenses less the amount of any sums paid to the Commission under this section; but, save as aforesaid, any reference in that Act to moneys received by the Commission or to expenditure incurred by, or the administrative expenses of, the Commission, shall be construed as including a reference to sums paid to, or, as the case may be, to expenses incurred by, the Commission by virtue of this Part of this Act.

11.—(1) Any reference in the preceding provisions of this Part of this Act to the person who, at the beginning of the fourth day of June in any particular year was the occupier of a farm, shall be construed as including a reference to any person who, if any subsidy payment that might lawfully be made by reason of land comprised at that time in that farm having been under oats or under barley in that year were a debt which had at the beginning of the said day accrued due to the person who was then the occupier of the farm, would for the time being be entitled to claim that subsidy payment otherwise than by virtue of an assignment.

Persons to
and by
whom
payments,
elections
and appli-
cations may
be made.

(2) Where in any year there has occurred or occurs, at any time before the fourth day of June, a change in the occupation of a farm which, at the time of the change, comprised or comprises land under wheat, land under oats or land under barley, and the outgoing occupier is, by virtue of any custom or agreement,

A.D. 1937. entitled to harvest any of the wheat, oats or barley, the appropriate Minister, upon application made to him by or on behalf of the outgoing occupier, may give directions for all or any of the following purposes, that is to say :—

—
PART II.
—*cont.*

- (a) for determining the person or persons by whom any election for that year which may be made in respect of the farm under section seven of this Act, or any application under section nine of this Act for any subsidy payment which may be made for that year in respect of the farm, must be made in order to be effective;
- (b) for requiring any such election to be approved by the appropriate Minister in order that it may be effective;
- (c) for securing, in a case where the outgoing occupier has the right to harvest the oats or barley or any part thereof, that the outgoing occupier will receive the whole or part of any such subsidy payment according as the appropriate Minister may determine;

and if and so far as, by virtue of any such directions as aforesaid, anything which under section six, section seven or section nine of this Act would otherwise fall to be done to or by the person who at the beginning of the fourth day of June was the occupier of a farm falls to be done to or by some other person, that section shall have effect as if any reference therein to the person who at the beginning of the said day was the occupier of the farm were, or as the case may be, included, a reference to that other person, and subsection (1) of this section shall be construed accordingly.

Laying of
rules and
regulations
before
Parliament.
56 & 57 Vict.
c. 66.

12. Any regulations or rules made by virtue of this Part of this Act shall, as soon as may be after they are made, be laid before Parliament, but shall be deemed not to be statutory rules to which section one of the Rules Publication Act, 1893, applies.

If either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such regulation or rule is laid before it resolves that the regulation or rule be annulled, it shall forthwith be void but without prejudice to anything previously

done thereunder or to the making of a new regulation or rule. A.D. 1937.]

PART II.

—*cont.*

Amend-
ments of
22 & 23
Geo. 5. c. 24.

13.—(1) Subsection (4) of section two of the Wheat Act, 1932, (which subsection provides for determining in each cereal year the quantity of home-grown millable wheat in respect of which deficiency payments may be made at the full rate) shall have effect as if, in paragraph (a) of the proviso to that subsection, for the words “twenty-seven million hundredweights,” in each place where those words occur, there were substituted the words “thirty-six million hundredweights.”

(2) The maximum quantity of home-grown millable wheat which the Flour Millers' Corporation may be required to buy by orders made under subsection (3) of section one of the Wheat Act, 1932, in any cereal year within the meaning of that Act shall be four million hundredweights, and accordingly—

(a) the said subsection shall have effect as if, in the proviso thereto, for the words “twelve-and-a-half per cent. of the anticipated supply for that year” there were substituted the words “four million hundredweights of wheat”; and

(b) subsection (4) of section two of the said Act shall have effect as if, in paragraph (a) of the proviso to that subsection, the words “except for the purposes of the proviso to subsection (3) of section one of this Act” were omitted.

(3) Section eight of the Wheat Act, 1932, (which provides for the reduction of quota payments where the amount of those payments would otherwise be likely to prove excessive by reason of certain specified matters) shall have effect as if, in that section, after the words “last preceding cereal year” there were inserted the words “or by reason of any registered growers having elected to avail themselves of Part II of the Agriculture Act, 1937.”

14. The preceding provisions of this Part of this Act shall, in the application thereof to Northern Ireland, have effect as if for any reference in those provisions to the fourth day of June there were substituted a reference to the first day of June.

Applica-
tion of
Part II to
Northern
Ireland.

A.D. 1937.

PART III.

LAND DRAINAGE.

Exchequer
grants for
defraying
land
drainage
expenses in
England
and Wales.

20 & 21
Geo. 5. c. 44.

15.—(1) The Minister may, out of moneys provided by Parliament, make towards expenditure incurred by drainage authorities to which this section applies in the exercise of their functions in carrying out drainage schemes grants of such amounts and subject to such conditions as may be approved by the Treasury.

(2) The drainage authorities to which this section applies are all drainage authorities as defined by section eighty-one of the Land Drainage Act, 1930, except catchment boards, and except the council of any county borough which has not established an agricultural committee constituted in accordance with a scheme approved by the Minister.

(3) Grants shall not be made under this section towards any expenditure incurred by an authority after the prescribed date which, subject as hereinafter provided, shall be the thirty-first day of July, nineteen hundred and forty :

Provided that the prescribed date may be postponed for not more than two successive periods of one year each by orders made by the Minister with the consent of the Treasury and confirmed by a resolution of each House of Parliament.

(4) This section shall not extend to Scotland.

Exchequer
grants
towards
drainage
expenditure
in Scotland.

16. Without prejudice to any other power exercisable by the Department of Agriculture for Scotland, that Department may, out of moneys provided by Parliament, make grants of such amounts and subject to such conditions as the Treasury may from time to time approve to owners or occupiers of agricultural land in Scotland in respect of expenditure on the drainage thereof.

Saving as
to special
areas.
25 & 26
Geo. 5. c. 1.

17. Notwithstanding anything in subsection (5) of section one of the Special Areas (Development and Improvement) Act, 1934, the power of the Minister and of the Department of Agriculture for Scotland to make specific grants under this Part of this Act shall not prevent the provision to local authorities of financial assistance under that Act towards the cost of drainage works.

PART IV.

A.D. 1937.

PROVISIONS AS TO DISEASES OF ANIMALS.

18.—(1) The Cattle Pleuro-Pneumonia Account for Great Britain shall be known as the Diseases of Animals Account, and references in any Act or document shall be construed accordingly.

Change of
name of
Cattle
Pleuro-
Pneumonia
Account.

(2) This section shall come into operation on the passing of this Act.

19.—(1) As from the commencement of this Part of this Act, the functions of veterinary inspectors in Great Britain under the Diseases of Animals Acts, 1894 to 1935, and any enactments relating to milk or to dairies, and the functions of veterinary inspectors in England and veterinary officers in Scotland under any arrangements made by virtue of section nine of the Milk Act, 1934, shall, in accordance with directions given by the Minister, be discharged by veterinary inspectors appointed for the purpose by him under section five of the Board of Agriculture Act, 1889, and the provisions of any enactment relating to such functions shall have effect accordingly.

Veterinary
inspectors.

24 & 25
Geo. 5. c. 51.

52 & 53 Vict.
c. 30.

(2) There shall be transferred and attached to the Ministry of Agriculture and Fisheries such veterinary inspectors or veterinary officers on the staff of any other Government Department as are engaged in connection with the execution of such Acts, enactments or arrangements as aforesaid.

(3) For the purpose of enabling local authorities to discharge their functions in relation to public health, arrangements shall be made by the Minister with the approval of the Treasury for placing the services of veterinary inspectors at the disposal of such authorities, subject to payment by them of any fee chargeable under this section, and the arrangements shall make provision as to the procedure by which such services are to be applied for by local authorities and generally as to the manner in which veterinary inspectors and the officers of local authorities are to co-operate in the execution of their functions under the arrangements.

(4) The Minister may charge, in respect of services rendered under any arrangements made in pursuance of

A.D. 1937. the last foregoing subsection, such fees as may be determined by him with the approval of the Treasury; and
 — any sums received by the Minister on account of such
 PART IV. fees shall be paid into the Exchequer.
 —cont.

Special
 payments
 in connection with
 the eradication of
 bovine
 tuberculosis.

20.—(1) During the period beginning at the commencement of this Part of this Act and ending with the thirty-first day of January, nineteen hundred and forty-one, the Minister may, in accordance with a scheme made by him and approved by the Treasury, pay to the owner of any herd of cattle in Great Britain such sums as the Minister thinks fit to expend for the purpose of securing so far as practicable that the herd will be free from tuberculosis.

(2) Not later than the end of the period mentioned in the preceding subsection, the Minister may, after consultation with the board administering any milk marketing scheme which is for the time being in force, make an order for securing that if that board are satisfied, with respect to any quantity of milk produced after the end of that period in the area to which the scheme applies, that it has been produced by a registered producer in such circumstances as the Minister may specify in the order with a view to effecting the purpose mentioned in the preceding subsection, the board shall pay to that registered producer, in respect of each gallon comprised in that quantity of milk, such sum not exceeding one penny as may be specified in the order.

In this subsection the expression “milk marketing
 21 & 22 scheme” means a scheme under the Agricultural Marketing
 Geo. 5. c. 42. Act, 1931, for regulating the marketing of milk, and the expression “registered producer” has the same meaning as in the said Act.

(3) Any scheme made under this section, and any subsequent scheme amending a scheme so made, shall be laid before Parliament as soon as may be after it has been approved by the Treasury, and if either House of Parliament, within the next twenty-eight days on which that House has sat after the scheme is laid before it, resolves that the scheme be annulled, the scheme shall thereupon cease to have effect, but without prejudice to anything previously done thereunder or to the making of a new scheme.

(4) Section nine of the Milk Act, 1934, is hereby repealed; but any arrangements made under subsection (1) of that section which were operative immediately before the commencement of this Part of this Act shall continue to have effect as if they had been sanctioned by a scheme duly made and approved under this section, subject, however, in the case of arrangements made by the Secretary of State for Scotland, to the modification that the powers and duties of the Department of Agriculture for Scotland, of any veterinary officer and of any other officer of that Department shall be exercised and performed respectively by the Minister, a veterinary inspector and an officer of the Minister.

A.D. 1937.

PART IV.

—cont.

21. The Minister may, with the approval of the Treasury, expend such sums as he thinks fit with the object of eradicating as far as practicable diseases of animals in Great Britain :

General power of Minister to expend money for the eradication of diseases of animals.

Provided that the Minister shall not after the thirty-first day of January, nineteen hundred and forty-one, have power under this section to make any payment which until that date he is empowered to make only by virtue of the last foregoing section.

22.—(1) The powers of the Minister under the Diseases of Animals Acts, 1894 to 1935, as to slaughter shall be extended so as to include power to cause to be slaughtered any animal which—

Extension of powers of Minister as to slaughter.

(a) is affected or suspected of being affected with any disease to which this section applies; or

(b) has been exposed to the infection of any such disease.

(2) This section applies to such diseases of animals as may from time to time be directed by order of the Minister.

(3) The Minister shall, under the powers conferred on him by the last foregoing section, pay for any animal slaughtered under the extended powers conferred by this section compensation of such amount as may be determined in accordance with scales prescribed by order of the Minister made with the approval of the Treasury.

(4) Every order made by the Minister under this section prescribing scales for the payment of compensation shall be laid before Parliament as soon as may be

A.D. 1937.

PART IV.
—cont.

after it is made and if either House of Parliament within the next twenty-eight days on which that House has sat after any such order is laid before it resolves that the order be annulled, it shall forthwith be void, but without prejudice to anything previously done thereunder or to the making of a new order.

Eradication
areas and
attested
areas.
57 & 58 Vict.
c. 57.

23. The powers of the Minister under section twenty-two of the Diseases of Animals Act, 1894, shall include power to make orders—

- (a) declaring any area as respects which he is satisfied that a substantial majority of the cattle therein are free from any particular disease to be an eradication area for purposes connected with the control of that disease;
- (b) declaring any area as respects which he is satisfied that any particular disease of cattle is for practical purposes non-existent therein to be an attested area for purposes connected with the control of that disease; and
- (c) prohibiting or regulating the movement of cattle into, out of or within any area which is for the time being an eradication area or an attested area.

Eradication
of diseases
of poultry.

24.—(1) With a view to promoting the breeding and distribution of stocks of poultry free from disease, the Minister may, with the approval of the Treasury, make arrangements whereby persons carrying on, at any premises in Great Britain recognised by him for the purposes of this section, the business of breeding and distributing stocks of poultry, may be afforded facilities for having such poultry, whether alive or dead, inspected, tested and examined free of charge, with the object of determining whether the birds are free from disease, or from what cause they have died.

(2) Any expenses incurred by the Minister under this section shall be defrayed by him out of moneys provided by Parliament.

Agricultural
Marketing
Boards to

25.—(1) It shall be the duty of every board administering a scheme under the Agricultural Marketing Acts, 1931 to 1933, to give at any time to the Minister such information as he may reasonably require for the purpose

of his functions under this Part of this Act, or under the Diseases of Animals Acts, 1894 to 1935. A.D. 1937.

(2) Nothing in section seventeen of the Agricultural Marketing Act, 1931, as amended by subsection (2) of section twenty-four of the Agricultural Marketing Act, 1933, shall apply to any disclosure of information made by a board in compliance with a requisition of the Minister under this section.

PART IV.

—cont.

give information to the Minister.
23 & 24
Geo. 5. c. 31.

26.—(1) Where a veterinary inspector who, immediately before the commencement of this Part of this Act, was a pensionable officer of a local authority becomes at the commencement of this Part of this Act a civil servant, then, if the Local Government and Civil Service (Superannuation) Rules, 1936, (hereafter in this section referred to as “the Rules of 1936”) do not already apply to that local authority, those rules shall nevertheless so apply in relation to that inspector as if the Treasury, upon the application of the local authority, had directed that the rules should apply to them.

Super-
annuation
rights of
veterinary
inspectors.

(2) Where a veterinary inspector who, at the commencement of this Part of this Act becomes a civil servant, was, immediately before so becoming a non-pensionable whole-time officer of a local authority, then, if by any general Act passed during the same session of Parliament as this Act or during the next succeeding session of Parliament, whole-time officers in the service of that authority on a specified future date will (subject to any special exceptions) on that date necessarily become pensionable under that general Act or pensionable, by virtue of that Act, under a local superannuation Act or scheme, that inspector, if on the said date he is still a civil servant, shall, subject to the following provisions of this section, be entitled to the benefits of the preceding subsection as if, immediately before the commencement of this Part of this Act, he had been a pensionable officer of the local authority.

(3) For the purpose of the application of the Rules of 1936 to any such inspector as is mentioned in the last preceding subsection—

- (a) his pensionable local authority service shall be calculated as it would have been calculated if the said general Act had been passed before this

A.D. 1937.

—
PART IV.
—*cont.*

Act and if the future date specified therein had been the day immediately prior to the commencement of this Part of this Act;

- (b) if under the Act or scheme to which he would have become subject on the said future date the local authority may by resolution increase the fraction of pensionable emoluments by reference to which an officer's superannuation allowance from them, or any part of that allowance, is to be calculated, they shall as soon as may be after that date take into consideration the case of the inspector in question and by resolution determine whether and if so, to what extent, that fraction is, within the limits permitted by the relevant Act or scheme, to be increased; and
- (c) if no resolution granting such an increase is passed by the local authority within six months after the said date, the fraction by reference to which the inspector's superannuation allowance from them is to be calculated shall be the fraction specified in the relevant Act or scheme.

(4) A local authority in whose service a veterinary inspector was immediately before he became a civil servant shall, in the case of an inspector to whom subsection (1) of this section applies, within three months after the commencement of this Part of this Act or, in the case of an inspector to whom subsection (2) of this section applies, within six months after the said specified future date, give to the Minister full information as to that inspector's previous service, the amount of his emoluments which will be pensionable emoluments for the purposes of the Rules of 1936 and the amount of the superannuation allowance which he may become entitled to receive from the local authority.

(5) If it appears to the Treasury that any difficulty arises in applying the Rules of 1936 so as to give effect to the principles laid down in this section, the Treasury may, notwithstanding anything in section nine of the Superannuation Act, 1935, modify those Rules so far as they deem it necessary so to do for the purpose of removing that difficulty.

(6) In this section—

A.D. 1937.

(a) the expression “veterinary inspector” includes a person who, immediately before the commencement of this Part of this Act, was a veterinary officer in Scotland;

PART IV.
—cont. ¶

(b) the expression “pensionable officer of a local authority” means an officer of a local authority who is a pensionable officer or servant of the authority within the meaning of section nine of the Superannuation Act, 1935; and

(c) the expression “civil servant” has the meaning assigned to it by section twelve of the Superannuation Act, 1887.

50 & 51 Vict.
c. 67.

27.—(1) Save as otherwise expressly provided in this Part of this Act, any expenditure incurred by the Minister which is authorised by this Part of this Act shall be defrayed by him out of the money standing to the credit of the Diseases of Animals Account.

Expenses.

(2) Any expenses which may, after the commencement of this Part of this Act, be incurred by the Minister in respect of compensation payable by him for animals slaughtered under section seven of the Diseases of Animals Act, 1894 (which relates to cattle plague) shall be defrayed out of the money standing to the credit of the Diseases of Animals Account and not out of moneys provided by Parliament.

(3) All officers and servants employed by the Minister for the purpose of the execution of this Part of this Act or any provisions of the Diseases of Animals Acts, 1894 to 1935, shall be, and, in the case of officers and servants appointed before the commencement of this Part of this Act, shall be deemed to have been, appointed under section five of the Board of Agriculture Act, 1889, and, notwithstanding anything in that section or in the said Diseases of Animals Acts, the remuneration and allowances payable to any such officers and servants and to any inspectors, valuers, or other persons appointed for the purpose aforesaid shall be defrayed as may be directed by the Treasury either out of the money standing to the

A.D. 1937. credit of the Diseases of Animals Account, or out of moneys provided by Parliament.

PART IV.

—*cont.*

19 & 20

Geo. 5. c. 17.

(4) Sub-paragraph (1) of paragraph 1 of the Third Schedule to the Local Government Act, 1929 (which requires the payment to the credit of the Diseases of Animals Account, out of moneys provided by Parliament, of any sum by which the money standing to the credit of that account is insufficient to defray the costs and expenses of the Diseases of Animals Acts, 1894 to 1927) shall have effect as if the reference in that sub-paragraph to the costs and expenses of those Acts included a reference to the expenditure which by this section is made payable out of the Diseases of Animals Account.

Minor and
consequen-
tial amend-
ments.

28.—(1) The amendments specified in the Second Schedule to this Act, being minor amendments, shall be made in the public general Acts mentioned in the said Schedule.

(2) If it appears to the Minister of Health in the case of a local Act in force in England, or to the Secretary of State in the case of a local Act in force in Scotland, that any provisions of that Act relating to veterinary inspectors, or to the inspection or testing of cattle, are inconsistent with the provisions of this Part of this Act, the Minister or the Secretary of State, as the case may be, on the application of any local authority appearing to him to be concerned, may by order make such consequential alterations, whether by amendment or by repeal, in those provisions of the local Act as he considers necessary for the purpose of bringing them into conformity with the provisions of this Part of this Act.

In this subsection the expression "local Act" includes a provisional order confirmed by Parliament.

(3) An order made under this section shall be laid before Parliament as soon as may be after it has been made and, if either House of Parliament within the next twenty-eight days on which that House has sat after the order is laid before it resolves that the order be annulled, it shall thereupon cease to have effect but without prejudice to anything previously done thereunder or to the making of a new order.

PART V.

A.D. 1937.

SUPPLEMENTARY.

29.—(1) For the purpose of obtaining information required for the purposes of this Act— Power to obtain information.

- (a) the appropriate Minister, and such authority, if any, as may be prescribed by the Land Fertility Scheme, may authorise in writing any person to inspect any agricultural land in respect of which a contribution under Part I of this Act has been applied for or made, or to require an approved supplier, or any person who has ceased to be an approved supplier, to furnish such information and to produce such accounts, books or other documents as he may, by virtue of the conditions subject to which he became or ceased to be an approved supplier, be lawfully required to furnish or produce;
- (b) the appropriate Minister may authorise in writing any person to inspect any agricultural land in respect of which a subsidy payment under Part II of this Act has been applied for or paid;
- (c) the Minister may authorise in writing any veterinary inspector or other officer of the Ministry of Agriculture and Fisheries to inspect animals or poultry;

and any person so authorised may, for the purposes of any inspection to be carried out by him, at all reasonable times, upon production of his authority on demand, enter on any land or premises and apply such tests and take such samples as he considers necessary.

(2) Notwithstanding anything in the Agricultural Returns Act, 1925, any returns made under that Act may be used by the Minister of Agriculture and Fisheries and by the Department of Agriculture for Scotland for the purposes of this Act, and the annual agricultural statistics collected by the Ministry of Agriculture for Northern Ireland may be used for the purposes of this Act, and any such returns or statistics may be published or disclosed to any committee or commission exercising functions conferred on them by or under this Act for the purpose of enabling them to exercise such functions, or to any court before which any proceedings under or in connection with this Act are taken. 15 & 16
Geo. 5. c. 39.

A.D. 1937.

PART V.

—cont.

Penalties.

30.—(1) Any person who—

- (a) knowingly or recklessly makes any false statement for the purpose of obtaining for himself or any other person any contribution, subsidy or other sum payable under this Act; or
- (b) having obtained a contribution under Part I of this Act in respect of any lime or basic slag, wilfully disposes of or uses it, or allows it to be used, for any purpose other than that of adding it to agricultural land in his occupation in the United Kingdom in order to improve the fertility of the soil; or
- (c) with intent to deceive, uses, or lends to or allows to be used by any other person, any certificate, receipt or other document issued for the purposes of the Land Fertility Scheme, or, with the like intent, makes or has in his possession any document so closely resembling such a certificate, receipt or other document as to be calculated to deceive; or
- (d) being lawfully required in accordance with the provisions of the Land Fertility Scheme to furnish any information or to produce any accounts, books or other documents, knowingly furnishes false information or produces any false accounts, books or other documents,

shall, unless in the case of an indictable offence he is indicted for the offence, be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such imprisonment and fine.

(2) Any person who obstructs or impedes any person duly authorised under this Act to make any inspection in the exercise of any functions which he is authorised by or under this Act to perform, or who, when duly required, fails or refuses to furnish any information or to produce any accounts, books or other documents in his possession or power which he may, by virtue of the conditions subject to which he became or ceased to be an approved supplier be lawfully required to furnish or produce, shall be liable on summary conviction in the case of a first offence to a fine not exceeding twenty

pounds and, in the case of a second or subsequent offence punishable under this subsection, to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding one month, or to both such imprisonment and fine.

A.D. 1937.

—
PART V.
—*cont.*

31. Any arrangements and any scheme or order made under this Act, not being an order postponing a prescribed date, may be varied or revoked by subsequent arrangements or a subsequent scheme or order, as the case may be, made in the like manner and subject to the like provisions, if any, with respect to laying before Parliament.

Power to
revoke and
vary orders,
&c.

32. In this Act, unless the context otherwise requires, the following expressions have the meanings hereby respectively assigned to them, that is to say:—

Interpreta-
tion.

“Acre” means statute acre, and acreage shall be construed accordingly;

“Agricultural land” means any land used as arable meadow or pasture ground, or for the purpose of poultry farming, market gardens, nursery grounds, orchards, or allotments, including allotment gardens within the meaning of the Allotments Act, 1922;

12 & 13
Geo. 5. c. 51.

“Animals” means cattle, sheep and goats and all other ruminating animals and swine and horses, asses and mules, and includes also in the case of any particular section of Part IV of this Act any other four-footed animal to which the Minister may by order declare that section to be applicable;

“Approved supplier” means a supplier of lime or basic slag approved for the purposes of the Land Fertility Scheme;

“Home-grown” means grown in the United Kingdom;

“Lime” means such forms of calcium oxide, calcium hydroxide or calcium carbonate as may be specified in the Land Fertility Scheme;

“Local authority” means the common council of the City of London, the council of a metropolitan borough or the council of a county, county borough or county district;

A.D. 1937.

PART V.

—cont.

25 & 26

Geo. 5. c. 31.

“Poultry” has the same meaning as in the Diseases of Animals Act, 1935;

“The appropriate Minister” means, in relation to England or functions exercisable with respect thereto and in relation to Northern Ireland or functions exercisable with respect thereto, the Minister; and, in relation to Scotland or functions exercisable with respect thereto, any reference in this Act to the appropriate Minister shall be construed as a reference to the Department of Agriculture for Scotland;

“The Minister” means the Minister of Agriculture and Fisheries;

“The Ministers” means the Minister and the Secretaries of State respectively concerned with agriculture in Scotland and in Northern Ireland;

“Year” means a period of twelve months beginning on the first day of January.

Application
to Scotland.

19 & 20

Geo. 5. c. 25.

33. In the application of this Act to Scotland—

(a) the expression “local authority” means a county council, or the town council of a large burgh within the meaning of the Local Government (Scotland) Act, 1929;

(b) for any reference to the Allotments Act, 1922, there shall be substituted a reference to the Allotments (Scotland) Act, 1922;

(c) any provision of this Act with regard to the recovery of an amount summarily as a civil debt shall have effect as if the word “summarily” were omitted therefrom;

(d) subsection (2) of section eleven of this Act shall not apply, and in lieu thereof the following provision shall have effect:—

“(2) Where in any year there has occurred or occurs, at any time before the fourth day of June, a change in the occupation of a farm which, at the time of the change, comprised or comprises land under oats or land under barley, and the outgoing occupier is, by virtue of any custom or agreement, entitled to harvest the oats or barley, or to

12 & 13

Geo. 5. c. 52.

receive payment therefor, the provisions of Part II of this Act shall, in relation to the said farm, have effect as if for any reference to the person who at the beginning of the fourth day of June in the said year was the occupier of the farm, there were substituted a reference to the outgoing occupier."

A.D. 1937.

—
PART V.
—*cont.*

34.—(1) This Act may be cited as the Agriculture Act, 1937.

Short title,
extent and
commence-
ment.

(2) Parts III and IV of this Act shall not extend to Northern Ireland.

(3) Save as otherwise expressly provided therein, Part IV of this Act shall come into operation on such date as the Minister may by order direct.

(4) As from the commencement of Part IV of this Act, the enactments specified in the Third Schedule to this Act shall, except in so far as they extend to Northern Ireland, be repealed to the extent mentioned in the third column of that Schedule.

A.D. 1937.

SCHEDULES.

FIRST SCHEDULE.

Section 6 (3). PROVISIONS FOR THE ASCERTAINMENT OF THE UNITED KINGDOM PRICE OF HOME-GROWN OATS.

1. In relation to each of the three countries the appropriate Minister shall, as soon as may be after the expiration of the period of seven months beginning on the first day of September in any relevant year, cause to be computed, in accordance with rules made by the Ministers, the average of the prices per hundredweight at which home-grown oats were sold in that country during the said period.

2. In relation to each of the three countries the appropriate Minister shall then cause to be ascertained the qualifying acreage of land under oats in that year.

3. The Ministers shall then cause the United Kingdom price per hundredweight of home-grown oats for the said period of seven months to be computed as follows :—

- (a) the average price computed in relation to each of the three countries under paragraph 1 of this Schedule shall be multiplied by the number of acres ascertained under paragraph 2 of this Schedule in relation to that country, and the resulting products shall be added together;
- (b) the resulting total shall be divided by the sum of the three numbers ascertained under the said paragraph 2.

If the amount arrived at under the preceding provisions of this paragraph is not an exact multiple of a penny, the odd fraction of a penny shall be disregarded.

4. In this Schedule the expression "the three countries" means England, Scotland and Northern Ireland, and the expression "relevant year" means the year nineteen hundred and thirty-seven or any of the following four years.

SECOND SCHEDULE.

A.D. 1937.

MINOR AMENDMENTS.

Section 28
(1).

AMENDMENTS OF THE DISEASES OF ANIMALS ACT, 1894.

Section seventeen.

In section seventeen for the words "the execution of the sections of" there shall be substituted the words "their powers under".

Section eighteen.

In paragraph (b) of subsection (1) the words "on account of pleuro-pneumonia, foot-and-mouth disease or swine-fever" shall be omitted.

Section fifty-nine.

In subsection (1) there shall be substituted for the definitions of "inspector of the Board of Agriculture," "inspector of a local authority," "inspector" and "veterinary inspector" the following definitions:—

"The expression 'inspector' means a person appointed to be an inspector for the purposes of this Act by the Minister of Agriculture and Fisheries or by a local authority, and, when used in relation to an officer of the Ministry, includes a veterinary inspector:

The expression 'veterinary inspector' means a veterinary inspector appointed by the Minister of Agriculture and Fisheries: "

Section sixty-three.

In subsection (1) for the words "inspector of the Board of Agriculture" there shall be substituted the words "inspector or veterinary inspector of the Ministry of Agriculture and Fisheries," and after the words "powers of an inspector" there shall be inserted the words "or veterinary inspector, as the case may be".

Subsection (2) shall be omitted.

A.D. 1937. AMENDMENTS OF THE MILK AND DAIRIES (CONSOLIDATION) ACT,
1915.2ND SCH.
—cont.*Section nineteen.*

In subsection (1) for the definition of “veterinary inspector” there shall be substituted the following definition:—

“The expression ‘veterinary inspector’ means a veterinary inspector appointed by the Minister of Agriculture and Fisheries.”

Section 34
(4).

THIRD SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
57 & 58 Vict. c. 57.	The Diseases of Animals Act, 1894.	In section seven, in subsection (3), the words “out of money provided by Parliament”; in section seventeen the words “on account of pleuro-pneumonia, foot-and-mouth disease, or swine fever”; in section eighteen, in paragraph (b) of subsection (1), the words “on account of pleuro-pneumonia, foot-and-mouth disease or swine fever”; section nineteen; in section twenty, in subsection (1) the words “or of a local authority,” and the words “or the local authority, as the case may be”; in subsection (2), the words “or of a local authority,” the words “or to the local authority, as the case may be,” the words “or the local authority,” and the words from “and any money,” to the end of the subsection; in subsection (3) the words “or a local authority,” and the words “or the local authority, as the case may be”; in subsection (4), the words “or of a local

Session and Chapter.	Short Title.	Extent of Repeal.
57 & 58 Vict. c. 57— <i>cont.</i>	The Diseases of Animals Act, 1894— <i>cont.</i>	authority," the words "or the local authority, as the case may be," and the words from "but, as regards," to the end of the subsection; in subsection (5), the words "or of a local authority"; subsection (6); and in subsection (7), the words "or a local authority, as the case may be," the word "respective," and the words "or the local authority, as the case may be"; in section twenty-two, in paragraphs (xiv) and (xvi), the words "or of a local authority"; in section thirty-four, in subsection (2), the words "including compensation for animals slaughtered"; subsection (2) of section thirty-five; and subsection (2) of section sixty-three.
4 & 5 Geo. 5. c. 46.	The Milk and Dairies (Scotland) Act, 1914.	In section three, subsections (1) to (6).
5 & 6 Geo. 5. c. 86.	The Milk and Dairies (Consolidation) Act, 1915.	In section ten, in subsection (1), the words from the beginning of the subsection to "the Diseases of Animals Act, 1894, and," and subsection (2).
15 & 16 Geo. 5. c. 63.	The Diseases of Animals Act, 1925.	Section one.
17 & 18 Geo. 5. c. 13.	The Diseases of Animals Act, 1927.	Section three; and in section four the words "or by a local authority".

A.D. 1937.

—
3RD SCH.
—*cont.*

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of Acts of Parliament

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:

Adastral House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;

26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;

80 Chichester Street, Belfast;

or through any bookseller

Price 6d. net